KEVIN BARTON

WASHINGTON COUNTY DISTRICT ATTORNEY

150 North First Avenue, Suite 300, MS 40, Hillsboro, Oregon 97124-3002

(503) 846-8671 / (503) 846-3407 (fax)

October 31, 2025

AshLe' Penn
ashlepenn.ap3@gmail.com

Adriana Ortega
adriana_ortega@co.washington.or.us

Heather Brown
heather_brown@washingtoncountyor.gov

Aaron Mendes
aaron_mendes@washingtoncountyor.gov

VIA EMAIL ONLY

Re: Petition of AshLe' Penn seeking a fee waiver for access to records relating to the supervision of Barry Washington and 2024-2025 layoff records within Washington County Community Corrections

AshLe' Penn made a public records request to Washington County ("the County") seeking two categories of records. In the first category of records, Ms. Penn requested records from Washington County Community Corrections relating to the supervision of Barry Washington in his criminal matter. Specifically, Ms. Penn requested (1) "[A]ll sworn and unsworn statements, affidavits, and warrant materials by supervising officers relating to Barry Washington," (2) "[E]mails, memoranda, and messages between supervisory staff concerning Barry Washington's supervision and transfer," (3) and "[E]lectronic supervision logs for Barry Washington (21CR25804)."[1] The County provided a fee estimate for records responsive to Ms. Penn's request. Ms. Penn sought a fee waiver. She indicated that the requested records "relate to the exercise of governmental authority in community corrections" and access to these records will "help ensure transparency" and "promote public safety [...]." Ms. Penn further indicated that as the victim in Mr. Washington's criminal matter, access to these records will "support my right to meaningful participation in the justice process." The County denied the fee

[1] Ms. Penn made an additional request for records related to "Evidence of Requestor Associations"; however, we have confirmed that request is still being processed. Based on that information, we do not believe the issue is ripe for appeal at this time. Therefore, we will not address this request.

KEVIN BARTON

WASHINGTON COUNTY DISTRICT ATTORNEY

150 North First Avenue, Suite 300, MS 40, Hillsboro, Oregon 97124-3002

(503) 846-8671 / (503) 846-3407 (fax)

waiver indicating that the fee waiver was not in the public interest and would burden county resources.

In the second category of records, Ms. Penn requested records relating to any layoffs within Washington County Community Corrections "for the period of November 1, 2024 to present." Specifically, Ms. Penn requested:

> "Layoff Notices: Copies of all written Layoff Notices issued to employees pursuant to county policy, including the reasons for layoffs and any options offered (demotion in lieu of layoff, temporary employment opportunities, redeployment program information).
>
> Basis for Layoffs: All documents constituting the basis for, or analysis leading to, the decision to implement layoffs, including but not limited to budget analyses, staffing studies, organizational charts, policy memoranda, correspondence with Human Resources, or directives from the Appointing Authority.
>
> Classification Seniority List(s): Any classification seniority list(s) prepared by Human Resources in connection with the layoffs....(including employee names, job classifications, hire dates, and relative ranking).
>
> List of Affected Employees: Records identifying employees who were ultimately laid off, including name, classification, and effective date of layoff.
>
> Internal Directives and Communications: Any memoranda, emails, or other communications issued by the Appointing Authority, Human Resources, or management staff concerning the layoffs, including instructions to prepare notices or implement layoffs."

Ms. Penn indicated that disclosure of these records would "contribute to the public's understanding of how Washington County allocates public funds, manages staffing within Community Corrections, and complies with legal obligations concerning employee rights during layoffs." The County initially denied the request citing exemptions under ORS 192.355(2) and ORS 192.355(3). We have confirmed that the County is no longer asserting these exemptions. However, the County has denied Ms. Penn's fee waiver request. This appeal followed.

KEVIN BARTON

WASHINGTON COUNTY DISTRICT ATTORNEY

150 North First Avenue, Suite 300, MS 40, Hillsboro, Oregon 97124-3002

(503) 846-8671 / (503) 846-3407 (fax)

In deciding this appeal, we reviewed the correspondence between Ms. Penn and the County. We then solicited further information from the parties and provided the County with the chance to submit further information or response. As discussed below, we respectfully deny petitioner's appeal.

A public body may charge a fee "reasonably calculated to reimburse the . . . actual cost of making public records available." ORS 192.324(4)(a). A public body can also waive or reduce fees if the public body "determines that the waiver or reduction of fees is in the public interest because making the record available primarily benefits the general public." ORS 192.324(5). Even if waiving or reducing the fee is in the public interest, agencies have discretion whether to grant such waiver or reductions. See *In Defense of Animals v. OHSU*, 199 Or App 160, 189 (2005). However, an agency's decision to deny a fee waiver or reduction must be reasonable under the totality of the circumstances. *Id.* at 190.

The District Attorney does not generally have the authority to review the reasonableness of a fee estimate, or to determine whether an estimate accurately reflects the actual cost to the agency of disclosing public records. Our role is to determine whether the agency has abused its discretion considering the totality of the circumstances. *Id.* at 190.

Thus, in deciding this appeal, we must first determine whether the fee waiver is in the public interest. The public-interest test is met when disclosure would primarily benefit public vs. private concerns:

> Waiving or reducing fees is in the public interest "when the furnishing of the records has utility – indeed, it's greatest utility – to the community or society as a whole." This is distinct from situations where disclosure would primarily effect "a concern or interest of a private individual or entity."

Attorney General's Public Records and Meetings Manual at 23 (2019).

Petitioner was the victim in Mr. Washington's criminal matter for which he was supervised by Washington County Community Corrections. Petitioner states that "[W]here the requestor is the crime victim seeking oversight of offender supervision and the compliant workings of community corrections as is a great matter of public interest –

KEVIN BARTON

WASHINGTON COUNTY DISTRICT ATTORNEY

150 North First Avenue, Suite 300, MS 40, Hillsboro, Oregon 97124-3002

(503) 846-8671 / (503) 846-3407 (fax)

a matter implicating public safety, agency accountability, and compliance with court-ordered victim communication – the public benefit is manifest."

We are not persuaded that a fee waiver would be in the public interest. Petitioner is not seeking any records regarding the supervision of any other probationer except for Mr. Washington. Petitioner clearly has a personal interest in Mr. Washington's supervision as she was the victim in his criminal matter. While these records are undoubtedly of great interest and significance to petitioner, we find that disclosure overwhelmingly serves the petitioner's private interest. *See* Public Records Order, December 5, 2016, *DeMartino* (no public interest in a fee waiver where requestor sought records related to a court case he was a party to); *See* Attorney General's Public Records Order, June 8, 1990, *Madrid* (tort claimant's interest in information related to notice of tort claim was not sufficient to require disclosure).

Petitioner also argues that disclosure of the requested records "primarily benefit the general public by promoting transparency and accountability in government operations" by informing "the public about how law enforcement and government agencies handle investigations, enforce laws, and manage workforce changes..." However, we are not persuaded that the records sought by petitioner implicate a broader public interest that requires a fee waiver. Petitioner has not articulated an argument as to how reviewing the details of Mr. Washington's supervision and Community Corrections layoff records would promote this purpose. Moreover, nothing about the requested records has garnered any media attention and we are not aware of any public complaints of misconduct involving Mr. Washington's supervision or Community Corrections layoffs. Furthermore, regardless of how interested the public may be in the matter the requested records relate to, if the requestor fails to demonstrate the ability to meaningfully disseminate the information, disclosure will not primarily benefit the public. See *Attorney General's Public Records and Meetings Manual* at 24 (2019) (citing *Judicial Watch, Inc. v. Rossotti*, 326 F3d 1309 (DC Cir 2003) (contrasting sufficient and insufficient demonstrations of ability to disseminate information to public)). Here, petitioner has articulated no meaningful ability to disseminate the requested materials. An expressed future intent to turn the records over to the media or advocacy organizations does not demonstrate an ability to "meaningfully disseminate" for the purpose of a fee waiver.

KEVIN BARTON

WASHINGTON COUNTY DISTRICT ATTORNEY

150 North First Avenue, Suite 300, MS 40, Hillsboro, Oregon 97124-3002

(503) 846-8671 / (503) 846-3407 (fax)

For these reasons, we do not believe that a fee waiver would be in the public interest. We find that the County did not abuse its discretion in denying petitioner's request for a fee waiver. Petitioner's appeal for a fee waiver is denied.

ORS 192.411 and ORS 192.431 provide a right for either party to appeal this decision.

Sincerely,

Sabina Khachaturova
Deputy District Attorney
For District Attorney Kevin Barton